

Privacy Policy

1. Purpose of this Privacy Policy

This Privacy Policy contains information on which personal data are processed within the scope of the CueLens study, for which purposes this takes place, on which legal basis the processing is carried out, who receives or processes the data, how long the data are stored, and which rights study participants have.

2. Controller

The person responsible for data processing within the scope of the CueLens study is:

Stefan Berger

Email: datenschutz@each-and-every.de

3. Which data are processed?

(1) Personal organisational, participation, and reimbursement data are used to organise participation, clarify queries, provide technical support, contact participants in connection with the study if necessary, and pay an expense allowance. This includes in particular:

- a. name,
- b. email address,
- c. age,
- d. habitual residence in Germany or Switzerland,
- e. number of cigarettes smoked per day,
- f. number of submitted self-reports,
- g. bank details.

(2) Self-reports on smoking craving after image-to-image assignments and text-to-image assignments are used for statistical analyses. This information is stored only in anonymised form and separately and, from that point onwards, can no longer be linked to specific participants.

(3) When using the web form, the app, and the server infrastructure, technical data required for secure operation may be recorded temporarily. These technical data are not used to create a usage profile. They may include in particular:

- a. IP addresses of participants,
- b. time of data transmissions,
- c. technical status information on the transmission of self-reports,
- d. security-related log data,
- e. information for preventing abusive server requests.

4. Purposes of processing

(1) The personal data are processed for the following purposes:

- a. checking the eligibility criteria,
- b. plausibility checks of the self-reports,
- c. technical safeguarding of the study procedure,
- d. payment and documentation of the expense allowance,
- e. evidence of consent given,
- f. handling queries, discontinuations, and withdrawals of consent.

(2) The anonymised data are used for the statistical evaluation of subjective smoking craving after the different study situations (study objective).

(3) No processing for other purposes takes place.

5. Legal bases for processing

(1) For participants in the European Union, personal data are processed on the basis of their consent pursuant to Art. 6(1)(a) GDPR. To the extent that information on smoking status and smoking craving is processed, these are health data. Their processing is carried out on the basis of the participants' explicit consent pursuant to Art. 9(2)(a) GDPR.

(2) For participants in Switzerland, personal data and particularly sensitive personal data are processed on the basis of their informed and voluntary consent and in compliance with the principles of the Swiss Federal Act on Data Protection.

(3) To the extent that data are required for payment of the expense allowance, documentation of participation, or compliance with statutory retention and documentation obligations, processing may additionally be based on the fulfilment of legal or contractual obligations.

6. Consent and withdrawal

(1) Consent to the processing of personal and health-related data is given by means of a web form. Consent may be withdrawn at any time with effect for the future by email to:

datenschutz@each-and-every.de.

(2) Withdrawal does not affect the lawfulness of processing carried out on the basis of consent before withdrawal.

(3) Study participants may stop using the app and discontinue participation in the study at any time without giving reasons. In this case, no further self-reports will be collected. However, discontinuing use of the app alone does not constitute withdrawal of data protection consent.

(4) In the event of withdrawal, it will be checked which personal data can be deleted and which data must still be retained for legal, organisational, or reimbursement-related reasons. Study results that have already been anonymised can generally no longer be assigned to an individual and therefore cannot be selectively deleted.

7. Recipients and service providers

(1) Personal data are disclosed to recipients only insofar as this is necessary for conducting the study, technically providing the infrastructure, paying the expense allowance, or fulfilling legal obligations.

(2) Recipients or categories of recipients may include:

- a. the person responsible for the study,
- b. technical hosting and infrastructure service providers within the framework of existing data processing agreements,
- c. payment service providers or banks for payment of the expense allowance,
- d. members of a university entrusted with supervising or directing the study, insofar as this is necessary for conducting the study and, in principle, only in anonymised or aggregated form,
- e. authorities or courts, insofar as there is a legal obligation to do so.

8. Storage locations and cross-border data transfer

(1) The study data are processed on servers in Germany. A backup copy is created on servers in Switzerland.

(2) This involves a transfer of personal data between Germany, the EU, and Switzerland. From the EU's perspective, an adequacy decision exists for Switzerland. Under Swiss data protection law, Germany likewise ensures an adequate level of protection.

9. Storage period and deletion

(1) Personal data are stored only for as long as necessary for the respective purposes.

(2) Contact and organisational data will be deleted no later than six months after completion of the study, unless they are still required for queries, documentation, or fulfilment of documentation obligations.

(3) Payment data are stored for as long as this is necessary for payment, reimbursement, and statutory retention obligations. Evidence of consent given may be retained for the purpose of documenting the lawfulness of processing. For participants from Germany, the regular limitation period of three years is taken into account. For participants from Switzerland, a limitation period of ten years is observed.

(4) Anonymised study results may be used permanently for scientific analysis and documentation of the research results.

10. Rights of participants

(1) In accordance with the applicable data protection regulations, participants have in particular the following rights:

- a. right of access to the data processed concerning them,
- b. right to rectification of inaccurate data,
- c. right to erasure of personal data,
- d. right to data portability, insofar as the statutory requirements are met,
- e. right to restriction of processing,
- f. right to withdraw consent given with effect for the future,
- g. right to lodge a complaint with a competent data protection supervisory authority.

(2) To exercise their rights, participants may contact:

datenschutz@each-and-every.de.

11. Provision of data

Providing the data required for the study is voluntary. Without the minimum information specified in the study information, however, participation in the CueLens study is not possible, because the eligibility criteria cannot be checked, the app study cannot be conducted, or the expense allowance cannot be paid.

12. No automated decision-making

(1) No automated decision-making takes place that produces legal effects concerning participants or similarly significantly affects them.

(2) Technical plausibility checks may be used to detect obviously incorrect, incomplete, or abusive information. A final decision on exclusion, reimbursement, or evaluation is not made solely by automated means.

13. Amendment of this Privacy Policy

This Privacy Policy may be amended if the study procedure, the technical implementation, or legal requirements change. The version provided before consent is given applies to participation, unless renewed information or consent becomes necessary.